

Track 1 — Chapter Build Pass

MPEP Chapter 1500 · Design Patents

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Protecting How Something Looks, Not What It Does

Design patent questions are usually short and rule-based — term length, single-claim practice, and the broken-line drawing convention are the recurring high-yield points, even though this is a lighter-tested chapter overall than the utility-patent material.

Rule 1: What a Design Patent Protects (§1502)

PLAIN ENGLISH

A design patent protects the **ornamental appearance** of an article of manufacture — its shape, surface ornamentation, or both — not its function. If a design's appearance is dictated primarily by function (functionality is the only reason for the shape, with no alternative designs that would work equally well), it isn't protectable as a design.

EXAMPLE

A distinctive, ornamental shape for a beverage bottle that's purely aesthetic (many other shapes would work equally well functionally) is properly protected by a design patent. A shape dictated purely by mechanical necessity (e.g., a gear tooth shape required for it to mesh with another gear, with no design alternative) would not be.

QUIZ

A design patent protects:

- (A) The functional operation of an article
- (B) The ornamental appearance of an article of manufacture
- (C) A method of manufacturing an article
- (D) A chemical composition

Rule 2: A Design Patent Application Has Only One Claim (§1503)

PLAIN ENGLISH

Unlike utility applications, a design application may contain **only a single claim**, in a standard format referring to the drawings/figures ("The ornamental design for [article], as shown and described"). The drawings themselves effectively define the scope of protection — there's no separate detailed written claim language describing specific dimensions or features the way a utility claim would.

EXAMPLE

A design application for a chair claims simply "The ornamental design for a chair, as shown," with the actual scope of protection defined entirely by the accompanying drawings showing the chair's appearance from multiple views.

QUIZ

How many claims may a design patent application contain?

- (A) As many as needed to cover different embodiments
- (B) Only one
- (C) Exactly two — one broad, one narrow
- (D) None; design patents don't require claims

Rule 3: Design Patent Term (§1505)

PLAIN ENGLISH

A design patent's term is **15 years from the date of grant** for applications filed on or after May 13, 2015 (14 years from grant for applications filed before that date). Unlike utility patents, design patent term is **not measured from the filing date**, and design patents are not subject to maintenance fees.

EXAMPLE

A design patent application filed in 2024 and granted in 2026 has a term running 15 years from 2026 (its grant date) — not from 2024 (its filing date) and not from any earlier priority application.

QUIZ

For a design application filed after May 13, 2015, the patent term is measured from:

- (A) The filing date, for 20 years
- (B) The grant date, for 15 years
- (C) The priority date, for 14 years
- (D) The publication date, for 20 years

Rule 4: Broken Lines & Claiming Only Part of an Article (§1503.02)

PLAIN ENGLISH

Design drawings can use **broken (dashed) lines** to show environmental structure or unclaimed portions of an article for context, while **solid lines** show the actual claimed ornamental design. This lets an applicant claim the design of only part of an article without claiming the whole thing.

EXAMPLE

A design patent for a distinctive smartphone camera housing might show the entire phone in broken lines for context, with only the camera housing itself shown in solid lines — meaning only the housing's appearance is actually claimed, not the whole phone's design.

QUIZ

What is the function of broken (dashed) lines in a design patent drawing?

- (A) To show the claimed design
- (B) To show unclaimed environmental structure or portions, for context only
- (C) To indicate a rejected feature
- (D) To show prior art

Rule 5: Design vs. Utility — Can You Get Both? (§1504.01)

PLAIN ENGLISH

An article can potentially be protected by **both** a utility patent (for its function) and a design patent (for its ornamental appearance) at the same time, since they protect fundamentally different aspects — this isn't double patenting, because the two patent types cover conceptually distinct subject matter (function vs. appearance).

EXAMPLE

A company might obtain a utility patent covering a novel mechanical latching mechanism inside a product, and separately a design patent covering the product's distinctive external ornamental shape — both patents can coexist covering the same physical product without any double patenting conflict.

QUIZ

Can the same article be covered by both a utility patent and a design patent simultaneously?

- (A) No, this is prohibited double patenting
 - (B) Yes — they protect fundamentally different aspects (function vs. ornamental appearance)
 - (C) Only if filed more than 5 years apart
 - (D) Only for pharmaceutical products
-

Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. A design's shape is dictated entirely by mechanical necessity, with no alternative shape that would work as well. Is this design eligible for design patent protection?

- (A) Yes, any distinctive shape qualifies
- (B) No — a design dictated primarily by function isn't protectable as a design
- (C) Yes, if it's also novel
- (D) No, mechanical articles can never receive design patents

2. How many claims can a single design patent application contain?

- (A) Unlimited
- (B) One
- (C) Up to five
- (D) Two, minimum

3. A design patent application filed in 2023 is granted in 2027. What is its term?

- (A) 20 years from 2023
- (B) 15 years from 2027
- (C) 14 years from 2023
- (D) 15 years from 2023

4. In a design patent drawing, what do broken lines typically indicate?

- (A) The claimed design itself
- (B) Unclaimed context/environmental structure
- (C) A section that was rejected
- (D) Prior art references

5. True or False: Obtaining both a utility patent and a design patent covering the same article is generally prohibited as double patenting.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- Design patents protect **ornamental appearance** only — not function; purely function-dictated designs are ineligible.
- Design applications have exactly **one claim**, referencing the drawings.
- Design patent term: **15 years from grant** (filed on/after May 13, 2015); 14 years from grant if filed earlier. No maintenance fees.
- **Broken lines** = unclaimed context; **solid lines** = the actual claimed design.
- Utility + design patents can both cover the **same article** without double patenting, since they protect different aspects.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: What a Design Patent Protects (§1502)

A design patent protects:

Answer: B

Design patents cover ornamental appearance only — utility patents are the vehicle for protecting function, and a purely function-dictated design isn't eligible for design patent protection.

Rule 2: A Design Patent Application Has Only One Claim (§1503)

How many claims may a design patent application contain?

Answer: B

Design applications are limited to a single claim — a sharp contrast with utility practice, where multiple claims of varying scope are standard and expected.

Rule 3: Design Patent Term (§1505)

For a design application filed after May 13, 2015, the patent term is measured from:

Answer: B

Design patent term runs 15 years from grant (for post-May-13-2015 filings) — unlike utility patents, which run from filing, not grant.

Rule 4: Broken Lines & Claiming Only Part of an Article (§1503.02)

What is the function of broken (dashed) lines in a design patent drawing?

Answer: B

Broken lines show context/environment that isn't itself being claimed; the actual claimed ornamental design is shown in solid lines — a key convention for interpreting design drawings correctly.

Rule 5: Design vs. Utility — Can You Get Both? (§1504.01)

Can the same article be covered by both a utility patent and a design patent simultaneously?

Answer: B

Utility and design patents protect conceptually distinct subject matter, so obtaining both for the same underlying article isn't a double patenting problem — a commonly tested reassurance/clarification point.

Chapter Close-Out Quiz

1. (B)

A design dictated purely by functional necessity, with no ornamental alternative, fails the basic eligibility requirement for design patent protection.

2. (B)

Design applications are limited to exactly one claim, referencing the drawings — unlike utility practice.

3. (B)

Design patent term for post-May-13-2015 filings runs 15 years from the grant date (2027 here), not the filing date.

4. (B)

Broken lines show unclaimed context/environment; only solid lines represent the actual claimed ornamental design.

5. (B) False

Utility and design patents protect different aspects (function vs. appearance) and can coexist on the same article without a double patenting problem.